

JUDGMENT SHEET
IN THE PESHAWAR HIGH COURT,
PESHAWAR
(Judicial Department)

W.P No.5552-P/2025

*Muhammad Usman S/O Jamroz Khan R/O Swati Phattak,
Mohallah Umeed Abad No.01, Peshawar.*

Versus

*Cantonment Board through its Executive Officer,
Peshawar Cantt & Others.*

J U D G M E N T

For petitioner(s): Mr. Iftikhar Ali, Advocate.

For respondent(s): Mr. Ihsan Ullah, Advocate &
Mr. Akbar Yousuf Khalil, DAG.

Date of hearing: **13.05.2026.**

INAM ULLAH KHAN, J.-

1. Through the instant writ petition, the petitioner has called in question the legality and propriety of order dated 11.07.2025, passed by respondent No.02 i.e., Director Military Lands & Cantonment, Peshawar Region, Peshawar Cantt, whereby the departmental appeal preferred by the petitioner against termination of his services was dismissed.

2. Briefly stated, the facts forming basis of the instant petition are that the petitioner claims to have been appointed as a Serviceman/Gardener on 29.09.2016 under Cantonment Board Peshawar. According to the petitioner, his services were governed by the Pakistan Cantonment Servants Rules, 1954 framed under Section 280(2)(c) of the Cantonments Act, 1924, and that during his service tenure no complaint whatsoever was ever communicated against him. It is the case of the petitioner that owing to his satisfactory performance and good conduct, his contractual engagement was repeatedly extended from time to time. The petitioner further averred that after termination of his services vide Office Order dated 12.03.2025, he submitted appeals dated 02.01.2025, 03.02.2025 and 04.03.2025 before the

competent authorities, however, no response was received. The petitioner also asserted discrimination on the ground that certain other employees namely Tahir Shah son of Raz Wali and Khyber Khan son of Noroz Khan were regularized vide orders dated 18.10.2022 and 16.01.2023 respectively, whereas instead of regularizing the petitioner, his services were dispensed with.

3. Record further reflects that prior to filing the instant petition, the petitioner had approached this Court through W.P. No.2750-P/2025. During proceedings therein, learned counsel for the petitioner did not press the petition provided the same was treated as an appeal and transmitted to respondent No.02 i.e., Director Military Lands & Cantonment, Peshawar Region, Peshawar Cantt, for decision in accordance with law after affording opportunity of hearing to the petitioner. Accordingly, vide order dated 14.05.2025, the said writ petition was disposed of with direction to the office to transmit the same to respondent No.02 for adjudication strictly in accordance with law within thirty working days.

4. In compliance of the aforesaid order of this Court, respondent No.02 fixed the matter for hearing on 10.07.2025 and heard the petitioner in person. Before respondent No.02, the petitioner reiterated that he was initially appointed on 29.09.2016 in the Sanitation Branch of Cantonment Board Peshawar and continuously performed duties till issuance of Office Order No.315 dated 12.03.2025 terminating his services. The representative of respondent-Cantonment Board Peshawar, however, submitted before respondent No.02 that as per HR MIS record, the petitioner was engaged on daily wages basis w.e.f. 02.08.2021 and his services, along with three other daily wage employees, were terminated due to unsatisfactory service, inefficiency and misconduct. It was further stated that daily wage employees are contingent labourers engaged purely on need basis and their services are liable to termination upon fulfilment of requirement or due to administrative and financial constraints. Thereafter, respondent No.02 dismissed the appeal vide order dated 11.07.2025 while holding that services of daily wage employees are temporary in nature and do not create any vested right either for reinstatement or regularization.

5. The respondents, in their comments submitted before this Court, reiterated that the petitioner was merely

a daily wager appointed on temporary basis for a specified period and his engagement remained subject to office requirement, availability of posts and financial resources. It has been contended that the services of the petitioner were terminated due to HR rationalization and financial constraints. The respondents further maintained that regularization of one employee does not ipso facto confer any right upon another employee to claim similar relief, as such matters depend upon availability of sanctioned posts, financial viability and prevailing policy. It has also been asserted that no constitutional or vested right accrued in favour of the petitioner for regularization of service.

6. We have heard learned counsel for the parties and learned DAG for the respondents at considerable length and have gone through the record with their able assistance.

7. Admittedly, the petitioner was not appointed against a regular sanctioned post through a regular recruitment process. The appointment letter as well as subsequent extension orders appended with the petition clearly demonstrate that the petitioner's engagement was purely temporary and contractual/daily wage in nature. The terms and conditions embodied therein specifically provided that his services were liable to termination at any time without notice and without assigning any reason. Such stipulation leaves little room for creation of any enforceable vested right in favour of the petitioner. The law is now fairly settled that employees engaged on daily wages, contingent basis, work-charge basis or temporary arrangements do not acquire indefeasible right either to continuation in service or to regularization merely on the basis of length of service.

8. In the instant case, no material has been brought on record to establish the existence of any statutory provision, notified policy, or legal framework under which the petitioner could legitimately claim regularization as a matter of right. On the contrary, the record reflects that the petitioner remained engaged throughout on a purely temporary basis as a daily-wage employee receiving fixed monthly wages. Such an arrangement, by its very nature, does not confer any vested or enforceable right to seek regular appointment or continuation in service. It is also pertinent to observe that the relevant statutory framework

excludes from the ambit of regularization those employees who are appointed against project posts, work-charge establishments, or are paid from contingencies. The legislative intent behind such exclusion is manifest and unambiguous, that the benefit of regularization is confined to employees appointed on adhoc or contractual basis under the prescribed scheme, and not to those engaged on daily-wages or work-charge arrangements, which are inherently temporary, non-pensionable, and contingent upon the continuation of specific projects, schemes, or availability of funds.

9. The record further reveals that the petitioner was engaged under temporary and time-bound arrangements, which were extended from time to time subject to administrative necessity, availability of posts, and financial resources. However, such extensions cannot, by any stretch of interpretation, convert a temporary engagement into permanent employment. The respondents have specifically pleaded that the services of the petitioner, along with other similarly situated employees, were discontinued on account of financial constraints, HR rationalization, and non-availability of sanctioned posts. In the absence of any statutory protection or vested right in favour of the petitioner, the discontinuation of his temporary engagement cannot be termed unlawful.

10. The administrative authorities are the proper forum to determine matters relating to organizational requirements, staffing patterns, and financial sustainability, keeping in view the institutional needs and available fiscal resources. In exercise of constitutional jurisdiction, this Court cannot sit as an appellate authority over administrative decisions nor substitute its own wisdom for that of the competent authorities unless the impugned action is shown to be tainted with mala fide, arbitrariness, discrimination, or patent illegality. It is further well-settled that the question of regularization squarely falls within the domain of policy-making and remains an exclusive prerogative of the Executive. Such matters ordinarily do not invite judicial interference, particularly where no statutory scheme or declared policy conferring a right of regularization has been brought on record. Guidance in this regard may be sought from the judgment of the Honorable Supreme Court of Pakistan in

Government of Khyber Pakhtunkhwa v. Sher Aman (2022 SCMR 406), wherein it was held as under:

14. Regularization is a policy matter which necessarily requires backing of the law. In the absence of any law, policy or rules, an employee cannot knock on the door of the High Court for regularization of his/her services.....

Likewise, in the case of Province of Punjab v. Ahmed Hussain (2013 SCMR 1547), the Honorable Supreme Court of Pakistan was pleased to hold as follows:

No regularization can be claimed as a matter of right unless there is a clear policy decision or legislative backing. Daily wages employment does not create a vested right for absorption in permanent service.

Similarly, in the case of Faraz Ahmed v. Federation of Pakistan through Secretary, Ministry of Communication, Government of Pakistan, Islamabad (2022 PLC 198), the Honorable Supreme Court was pleased to hold as under:

8. The bone of contention was whether the petitioner, being a contractual employee, had any vested right for regularization or absorption in the newly created cell, and whether a certain length of contractual services could be considered to give rise to a legitimate right to be permanently absorbed. On the contrary, in the various dictums laid down by this Court it was repeatedly held that contractual employees have no vested right to regularization, but their regularization may be considered subject to the fitness, suitability and the applicable laws, rules and regulations of the Department. In the case of Khushal Khan Khattak University through Vice-Chancellor and others v. Jabran Ali Khan and others (2011 SCMR 977), this Court held that it is settled law that there is no vested right to seek regularization for employees hired on contractual basis unless there was legal and statutory basis for the same. In the case of Government of Khyber Pakhtunkhwa, Workers Welfare Board through Chairman v. Raheel Ali Gohar and others (2020 SCMR 2068), this Court held that contractual employees have no automatic right to be regularized unless the same has specifically been provided for in the law. The judgment of this Court in Civil Petitions Nos.4504 to 4576,4588 and 4589 of 2017 dated 08.01.2013 was also quoted in which it was held that contractual employees have no right to be regularized until there is a law provided to that effect and we are not confronted with any such legal proposition. They have to serve till the

pleasure of their master and, in case of any wrongful termination, they cannot seek the reinstatement. At the best, they can only have the compensation for the wrongful termination by applying to the competent court of law. Whereas in the case of Chairman NADRA, Islamabad, through Chairman, Islamabad and another v. Muhammad Ali Shah and others (2017 SCMR 1979), it was held that till such time that the employees were regularized they would continue to be governed by the terms and conditions of the contract which they had with NADRA. The writ or constitutional jurisdiction of the High Court under Article 199 of the Constitution could not be invoked by a contractual employee of a statutory organization, such a NADRA (see Pakistan Defence Officers' Housing Authority v. Jawaid Ahmed reported as 2013 SCMR 1707, Pakistan Telecommunication Co. Ltd. v. Iqbal Nasir reported as PLD 2011 Supreme Court 132 and P.T.C.L v. Masood Ahmed Bhatti reported as 2016 SCMR 1362). In the next case of Government of Khyber Pakhtunkhwa through Chief Secretary, Peshawar and others v. Intizar Ali and others (2022 SCMR 472), it was held that temporary employees have no vested right to claim reinstatement/regularization. This Court in a number of cases has held that temporary/contract/project employees have no vested right to claim regularization. The direction for regularization, absorption or permanent continuance cannot be issued unless the employee claiming regularization had been appointed in pursuance of a regular recruitment in accordance with relevant rules and against the sanctioned vacant posts, which admittedly is not the case before us. In the case of Vice Chancellor, Bacha Khan University Charsadda, Khyber Pakhtunkhwa and others v. Tanveer Ahmed and others (2022 PLC (C.S) 85), it was held that a person employed on a contract basis has no vested right to regularization. Similarly, in the case of Pakistan Telecommunication Company Ltd. V. Muhammad Samiullah (2021 SCMR 998), it was held that an ad hoc, temporary or contractual appointment does not create any vested right of regularization in favour of the appointee. In the case of Government of Khyber Pakhtunkhwa through Secretary Forest, Peshawar and others v. Sher Aman and others (2022 SCMR 406), it was held that contract employee have no vested right to be regularized. While in the case of Deputy Director Finance and Administration FATA through Additional Chief Secretary FATA, Peshawar and others v. Dr. Lal Marjan and others (2022 SCMR 566), it was held by this Court that regularization is not a vested right but requires a statutory basis which is admittedly absent in the instant case. Where a contractual employee wishes to be regularized,

he must demonstrate stator basis for such a claim, in the absence of which, relief cannot be granted solely on the principle of “similarly placed persons.

11. Equally, the contention of the petitioner regarding regularization of Tahir Shah and Khyber Khan also does not advance his case. Regularization of one or more employees under distinct circumstances does not automatically confer a legally enforceable right upon every temporary employee to seek identical treatment. Such matters depend upon multiple variables including availability of vacancies, sanctioned strength, financial allocation and applicable policy at the relevant time. In this regard, Honorable Supreme Court in Sher Aman (Supra) also held as under:

16. It is not denied by either side that all of the Respondents were pointed on temporary posts as stipulated in their employment contracts. We note that the learned High Court has not adverted to this aspect of the case and has simply applied the principle of “similarly placed employees” to grant relief to the Respondents. It has specifically been mentioned in the appointment orders of the Respondents that they cannot claim regularization and further, that they are employed on contract for a specific period of time. In this view of the matter, the learned High court has incorrectly applied the law to the cases of the respondents. We find the view of the learned High Court is neither supported by the law nor the policy of regularization and is patently erroneous. Further, it is not in consonance with the settled principles of law on the subject and is therefore unsustainable.

12. Moreover, the record further reveals that prior regularizations—relied upon by the petitioner—were made before imposition of recruitment ban by the competent authority. In this regard, the Government of Pakistan, Ministry of Defence (ML&C Department), vide letter No.73/178/ADG(Es)/ML&C/2007 dated 16.08.2024 imposed an immediate and comprehensive ban on all forms of recruitment in Cantonment Boards in the interest of organizational efficiency and budgetary control. The relevant portion whereof reads as under:

“In the interest of maintaining organizational efficiency and budgetary control in Cantt Boards, it has been decided by the Competent Authority i.e. DG ML&C to impose an immediate

and comprehensive ban on all forms of recruitment....”

The aforesaid notification further mandated strict compliance and clarified that any violation thereof would entail disciplinary consequences. Therefore, even otherwise, the respondents were operating under express administrative restrictions concerning recruitment and regularization.

13. Another significant aspect of the matter is that pursuant to directions of this Court passed in W.P. No.2750-P/2025, respondent No.02 duly afforded opportunity of personal hearing to the petitioner and thereafter passed a speaking order after considering the stance of both sides. The impugned order does not suffer from any jurisdictional defect, procedural impropriety, violation of natural justice or patent illegality warranting interference by this Court in exercise of constitutional jurisdiction. It is trite law that constitutional jurisdiction is discretionary and equitable in nature. Such jurisdiction is not ordinarily invoked to enforce contractual or temporary engagements particularly where no statutory right is shown to have been infringed. The petitioner has failed to establish any vested legal right capable of enforcement through issuance of constitutional writ.

14. For what has been discussed above, this Court is of the considered view that the petitioner has not been able to make out a case for interference. The impugned order dated 11.07.2025, passed by respondent No.02 is found to be lawful, reasoned and in accordance with settled principles of law. Consequently, the instant writ petition being devoid of merit is hereby dismissed.

Announced.
13.05.2026
(Shahid Ali *JSS*)

**SENIOR PUISNE
JUDGE**

JUDGE

(D.B)
Justice Ijaz Anwar &
Justice Inam Ullah Khan